

Federal Constitution

NOTES

Art. 160—(cont.)

Clause 7: Inserted by Act 59/1966, section 2, in force from 09-08-1965.

Art. 160A

This new Article was inserted by A1130, section 11, in force from 28-09-2001.

Notes:

1. At the moment, the Federal Constitution is reprinted from time to time under the authority of the Commissioner of Law Revision pursuant to the Revision of Laws Act 1968 [Act 1]. In view of the status of the Federal Constitution as the supreme law of the Federation, it is only proper that specific provision for such reprint be included in the Constitution itself.
2. Any copy of a reprint of the Federal Constitution under the Revision of Laws Act 1968, which is deemed to be the authentic text of the Federal Constitution under that Act shall continue to be such authentic text until the coming into existence of copies of the Federal Constitution printed under Article 160A as inserted into the Federal Constitution by Act A1130.

Art. 160B

This new Article was inserted by Act A1130, section 12, in force from 28-09-2001, to enable the Yang di-Pertuan Agong to prescribe the national language translation of the Federal Constitution to be the authoritative text.

Part XIII

1. The heading “AND SINGAPORE” was deleted after the words “BORNEO STATES” by Act 59/1966, section 2, in force from 19-09-1966.
2. The words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Art. 161

1. The present Article was inserted by Act 26/1963, section 61, in force from 16-09-1963.
2. The original Article was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“161. Except as otherwise expressly provided, this Constitution shall come into operation on Merdeka Day.”.
3. In the shoulder note, the words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clauses (2), (3), (4) & (5)

The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clause (3)

- a. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
- b. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.

proceedings in the Federal Court or the Court of Appeal as are mentioned in Clause (4); and

- (c) to the use of the English language in the State of Sabah or Sarawak in the Legislative Assembly or for other official purposes (including the official purposes of the Federal Government).

(3) Without prejudice to Clause (1), no such Act of Parliament as is there mentioned shall come into operation as regards the use of the English language for proceedings in the High Court in Sabah and Sarawak or for such proceedings in the Federal Court or the Court of Appeal as are mentioned in Clause (4), until the Act or the relevant provision of it has been approved by enactments of the Legislatures of the States of Sabah and Sarawak; and no such Act shall come into operation as regards the use of the English language in the State of Sabah or Sarawak in any other case mentioned in paragraph (b) or (c) of Clause (2), until the Act or the relevant provision of it has been approved by an enactment of the Legislature of that State.

(4) The proceedings in the Federal Court or the Court of Appeal referred to in Clauses (2) and (3) are any proceedings on appeal from the High Court in Sabah and Sarawak or a judge thereof, and any proceedings under Clause (2) of Article 128 for the determination of a question which has arisen in proceedings before the High Court in Sabah and Sarawak or a subordinate court in the State of Sabah or Sarawak.

(5) Notwithstanding anything in Article 152, in the State of Sabah or Sarawak a native language in current use in the State may be used in native courts or for any code of native law and custom, and in the case of Sarawak, until otherwise provided by enactment of the Legislature, may be used by a member addressing the Legislative Assembly or any committee thereof.

Special position of natives of States of Sabah and Sarawak

161A. (1) (*Repealed*).

(2) (*Repealed*).

(3) (*Repealed*).

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Art. 161—(cont.)

Clause (4)

Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.

Clauses (2)(b), (3) & (4)

The words “Sabah and Sarawak” and the words “Federal Court or the Court of Appeal” substituted respectively for the word “Borneo” and the words “Supreme Court” by Act A885, section 39, in force from 24-06-1994.

Note:

Clause (5) of Article 161 of the Constitution shall, in so far as it relates to the use of a native language in native courts or for any code of native law and customs, apply in the Federal Territory of Labuan in the like manner that it applies in the State of Sabah—*See* section 17 of Act A585.

Art. 161A

1. Added by Act 26/1963, section 62, in force from 16-09-1963.
2. *See* Art. 89(7).

Clauses (1), (2) & (3)

These Clauses were repealed by Act A30, paragraph 8(a), in force from 10-03-1971 and read as follows:

“(1) Subject to Clause (2), the provisions of Clauses (2) to (5) of Article 153, so far as they relate to the reservation of positions in the public service, shall apply in relation to natives of any of the Borneo States as they apply in relation to Malays.

(2) In a Borneo State Article 153 shall have effect with the substitution of references to natives of the State for the references to Malays, but as regards scholarships, exhibitions and other educational or training privileges and facilities Clause (2) of that Article shall not require the reservation of a fixed proportion for natives.

(3) Before advice is tendered to the Yang di-Pertuan Agong as to the exercise of his powers under Article 153 in relation to a Borneo State, the Chief Minister of the State in question shall be consulted.”.

(4) The Constitutions of the States of Sabah and Sarawak may make provision corresponding (with the necessary modifications) to Article 153.

(5) Article 89 shall not apply to the State of Sabah or Sarawak, and Article 8 shall not invalidate or prohibit any provision of State law in the State of Sabah or Sarawak for the reservation of land for natives of the State or for alienation to them, or for giving them preferential treatment as regards the alienation of land by the State.

(6) In this Article “native” means—

- (a) in relation to Sarawak, a person who is a citizen and either belongs to one of the races specified in Clause (7) as indigenous to the State or is of mixed blood deriving exclusively from those races; and
- (b) in relation to Sabah, a person who is a citizen, is the child or grandchild of a person of a race indigenous to Sabah, and was born (whether on or after Malaysia Day or not) either in Sabah or to a father domiciled in Sabah at the time of the birth.

(7) The races to be treated for the purposes of the definition of “native” in Clause (6) as indigenous to Sarawak are the Bukitans, Bisayahs, Dusuns, Sea Dayaks, Land Dayaks, Kadayans, Kalabits, Kayans, Kenyahs (including Sabups and Sipengs), Kajangs (including Sekapans, Kejamans, Lahanans, Punans, Tanjongs and Kanowits), Lugats, Lisums, Malays, Melanos, Muruts, Penans, Sians, Tagals, Tabuns and Ukits.

Restriction on extension to non-residents of right to practise before courts in States of Sabah and Sarawak

161B. (1) In so far as any provision made by or under an Act of Parliament, by removing or altering a residence qualification, confers a right to practise before a court in the States of Sabah and Sarawak or either of them on persons not previously having the right, that provision shall not come into operation until adopted in the States or State in question by an enactment of the legislature.

(2) This Article shall apply to the right to practise before the Federal Court or the Court of Appeal when sitting in the States

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Art. 161A—(cont.)

Clause (4)

- a. The words “with the changes made by Clause (2)” were deleted after the words “Article 153” by Act A30, paragraph 8(b), in force from 10-03-1971.
- b. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Clause (5)

The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

3. In the shoulder note, the words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Note:

The reference in Clause (6)(b) of Article 161A of the Constitution to “Sabah” shall be construed as including a reference to the Federal Territory of Labuan—*See* subsection 18(1) of Act A585.

Art. 161B

1. Added by Act 26/1963, section 63, in force from 16-09-1963.
2. In the shoulder note, the words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clause (1)

The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

of Sabah and Sarawak and entertaining proceedings on appeal from the High Court in Sabah and Sarawak or a judge thereof or proceedings under Clause (2) of Article 128 for the determination of a question which has arisen in proceedings before the High Court in Sabah and Sarawak or a subordinate court in the State of Sabah or Sarawak.

161C. (*Repealed*).

161D. (*Repealed*).

Safeguards for constitutional position of States of Sabah and Sarawak

161E. (1) As from the passing of the Malaysia Act no amendment to the Constitution made in connection with the admission to the Federation of the State of Sabah or Sarawak shall be excepted from Clause (3) of Article 159 by paragraph (*bb*) of Clause (4) of that Article; nor shall any modification made as to the application of the Constitution to the State of Sabah or Sarawak be so excepted unless the modification is such as to equate or assimilate the position of that State under the Constitution to the position of the States of Malaya.

(2) No amendment shall be made to the Constitution without the concurrence of the Yang di-Pertua Negeri of the State of Sabah or Sarawak or each of the States of Sabah and Sarawak concerned, if the amendment is such as to affect the operation of the Constitution as regards any of the following matters:

- (a) the right of persons born before Malaysia Day to citizenship by reason of a connection with the State, and (except to the extent that different provision is made by the Constitution as in force on Malaysia Day) the equal treatment, as regards their own citizenship and that of others, of persons born or resident in the State and of persons born or resident in the States of Malaya;
- (b) the constitution and jurisdiction of the High Court in Sabah and Sarawak and the appointment, removal and suspension of judges of that court;
- (c) the matters with respect to which the Legislature of the State may (or Parliament may not) make laws, and the

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Art 161b—(cont.)

Clause (2)

- a. The words “the state of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.
- b. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
- c. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- d. The words “Federal Court or the Court of Appeal” and “Sabah and Sarawak” substituted respectively for the words “Supreme Court” and “Borneo” by Act A885, section 40, in force from 24-06-1994.

Art. 161c

1. Added by Act 26/1963, section 64, in force from 16-09-1963.
2. This Article was repealed by Act A354, section 46, in force from 27-08-1976 and read as follows:

“161c. (1) No Act of Parliament which provides as respects a Borneo State for special financial aid for the establishment or maintenance of Muslim institutions or the instruction in the Muslim religion of persons professing that religion shall be passed without the consent of the Governor.

(2) Where under any provision of federal law not having effect as respects Sabah, or not having effect as respects Sarawak, any such aid as aforesaid is given by way of grant out of public funds in any year, there shall be paid by the Federation to the Government of Sabah or Sarawak, as the case may be, and applied for social welfare purposes in that State, amounts which bear to the revenue derived by the Federation from that State in the year the same proportion as the grant bears to the revenue derived by the Federation from other States in that year.

(3) For the purposes of Clause (2) the revenue derived by the Federation from any State or States shall be the amount after deduction of any sums assigned to States under Article 110 or the Tenth Schedule; and there shall be disregarded any contributions received by the Federation out of the proceeds of lotteries conducted by the Social and Welfare Services Lotteries Board together with any amounts applied to such aid as aforesaid out of or by reference to those contributions.”.

Art. 161d

1. Added by Act 26/1963, section 65, in force from 16-09-1963.
2. This Article was repealed by Act A354, section 46, in force from 27-08-1976 and read as follows:

“161d. Notwithstanding Clause (4) of Article 11, there may be included in the Constitution of a Borneo State provision that an enactment of the State Legislature controlling or restricting the propagation of any religious doctrine or belief among persons professing the Muslim religion shall not be passed unless it is agreed to in the Legislative Assembly on second or third reading or on both by a specified majority, not being a majority greater than two-thirds of the total number of members of the Assembly.”.

Art. 161e

1. Added by Act 26/1963, section 66, in force from 16-09-1963.
2. *See* Art. 159(1), (4)(bb) & 159A.
3. In the shoulder note and Clause (1), the words “States of Sabah and Sarawak” substituted for the words “Borneo States” and the words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

executive authority of the State in those matters, and (so far as related thereto) the financial arrangements between the Federation and the State;

(d) religion in the State, the use in the State or in Parliament of any language and the special treatment of natives of the State;

(e) the allocation to the State, in any Parliament summoned to meet before the end of August 1970, of a quota of members of the House of Representatives not less, in proportion to the total allocated to the other States which are members of the Federation on Malaysia Day, than the quota allocated to the State on that Day.

(3) No amendment to the Constitution which affects its operation as regards the quota of members of the House of Representatives allocated to the State of Sabah or Sarawak shall be treated for purposes of Clause (1) as equating or assimilating the position of that State to the position of the States of Malaya.

(4) In relation to any rights and powers conferred by federal law on the Government of the State of Sabah or Sarawak as regards entry into the State and residence in the State and matters connected therewith (whether or not the law is passed before Malaysia Day) Clause (2) shall apply, except in so far as the law provides to the contrary, as if the law had been embodied in the Constitution and those rights and powers had been included among the matters mentioned in paragraphs (a) to (e) of that Clause.

(5) In this Article “amendment” includes addition and repeal.

161F. *(Repealed).*

161G. *(Repealed).*

161H. *(Repealed).*

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Art 161E—(cont.)

Clause (2)

- a. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- b. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Clause (2)(b)

The words “Sabah and Sarawak” substituted for the word “Borneo” by Act A885, section 41, in force from 24-06-1994.

Clauses (3) & (4)

The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Art. 161F, 161G & 161H

These Articles were added by Act 26/1963, sections 67, 68 and 69, in force from 16-09-1963, and were repealed by Act 59/1966, section 2, in force from 09-08-1965 which read as follows:

“161F. Notwithstanding anything in Article 152, until otherwise provided by enactment of the Legislature of Singapore, the English, Mandarin and Tamil languages may be used in the Legislative Assembly of Singapore, and the English language may be used for the authoritative texts of all Bills to be introduced or amendments thereto to be moved in that Assembly, and of all enactments of that Legislature, and of all subsidiary legislation issued by the government of Singapore.

161G. Nothing in Clause (2) of Article 8 or Clause (1) of Article 12 shall prohibit or invalidate any provision of State law in Singapore for the advancement of Malays; but there shall be no reservation for Malays in accordance with Article 153 of positions in the public service to be filled by recruitment in Singapore, or of permits or licences for the operation of any trade or business in Singapore.

161H. (1) No amendment shall be made to the Constitution without the concurrence of the Governor if the amendment is such as to affect the operation of the Constitution in relation to Singapore as regards any of the following matters:

- (a) citizenship of Singapore, and the restriction to citizens of Singapore of the right to be a member of either House of Parliament for or from Singapore, or to be a member of the Legislative Assembly of Singapore, or to vote at elections in Singapore;
 - (b) the constitution and jurisdiction of the High Court in Singapore and the appointment, removal and suspension of judges of that court;
 - (c) the matters with respect to which the Legislature of the State may (or Parliament may not) make laws, the executive authority of the State in those matters, the borrowing powers of the State and the financial arrangements between the Federation and the State;
 - (d) the discharge of functions of the Public Services Commission or of the Judicial and Legal Service Commission by a branch established for the State, and the constitution of any such branch;
 - (e) religion in the State, the use in the State or in Parliament of any language and the special position of the Malays in Singapore;
 - (f) the allocation to the State, in any Parliament summoned to meet before the end of August 1970, of a quota of members of the House of Representatives not less, in proportion to the total allocated to the other States which are members of the Federation on Malaysia Day, than the quota allocated to the State on that day.
- (2) In this Article “amendment” includes addition and repeal.”.

PART XIII

TEMPORARY AND TRANSITIONAL PROVISIONS

Existing laws

162. (1) Subject to the following provisions of this Article and Article 163*, the existing laws shall, until repealed by the authority having power to do so under this Constitution, continue in force on and after Merdeka Day, with such modifications as may be made therein under this Article and subject to any amendments made by federal or State law.

(2) Where any State law amends or repeals an existing law made by the Legislature of a State, nothing in Article 75 shall invalidate the amendment or repeal by reason only that the existing law, relating to a matter with regard to which Parliament as well as the Legislature of a State has power to make laws, is federal law as defined by Article 160.

(3) References in any existing law to the Federation established by the Federation of Malaya Agreement 1948, and its territories, and to any officer holding office under that Federation or to any authority or body constituted in or for that Federation (including any references falling to be construed as such references by virtue of Clause 135 of the said Agreement) shall be construed, in relation to any time on and after Merdeka Day, as references to the Federation (that is to say, the Federation established under the Federation of Malaya Agreement 1957) and its territories and to the corresponding officer, authority or body respectively; and the Yang di-Pertuan Agong may by order declare what officer, authority or body is to be taken for the purposes of this Clause to correspond to any officer, authority or body referred to in any existing law.

(4) (*Repealed*).

(5) Any order made under Clause (4) may be amended or repealed by the authority having power to make laws with respect to the matter to which the order relates.

(6) Any court or tribunal applying the provision of any existing law which has not been modified on or after Merdeka Day under this Article or otherwise may apply it with such modifications as may be necessary to bring it into accord with the provisions of this Constitution.

*NOTE—This Article has been repealed by section 8 of the Constitution (Amendment) Act 1963 [Act 25/1963] w.e.f. 29 August 1963. See notes on Article 163.